

IN THE SUPREME COURT OF PAKISTAN

(Advisory Jurisdiction)

Present:

Justice Qazi Faez Isa, CJ
Justice Sardar Tariq Masood
Justice Syed Mansoor Ali Shah
Justice Yahya Afridi
Justice Amin-ud-Din Khan
Justice Jamal Khan Mandokhail
Justice Muhammad Ali Mazhar
Justice Syed Hasan Azhar Rizvi
Justice Musarrat Hilali

REFERENCE NO. 1 OF 2011

[Reference by the President of Islamic Republic of Pakistan under Article 186 of the Constitution]

In Attendance:

On behalf of President : Mr. Mansoor Usman Awan,
Attorney-General for Pakistan with
Mr. Javed Iqbal Wains,
Additional Attorney-General for Pakistan.
Raja M. Shafqat Abbasi,
Deputy Attorney-General for Pakistan.

On Court Notice : Mr. Khalid Ishaq, Advocate-General, Punjab
Mr. Hassan Akbar, Advocate-General, Sindh.
Mr. Khalid Javed, Advocate-General, KP.
Mr. Ayaz Swati, Addl. AG, Balochistan.

For LRs of

late Zulfiqar Ali Bhutto :

Mr. Farooq H. Naek, Sr. ASC
Assisted by Mr. Iftikhar Shah, Advocate.
a/w Mr. Bilawal Bhutto Zardari.
(on behalf of Mr. Bilawal Bhutto Zardari)

: Main Raza Rabbani, ASC.
Assisted by Mr. Zeeshan Abdullah, ASC.
a/w Ms. Sanam Bhutto and Ms. Aseefa Bhutto.
*(on behalf of Ms. Sanam Bhutto, Ms. Bakhtawar Bhutto
and Ms. Aseefa Bhutto)*

: Mr. Zahid F. Ibrahim, ASC.
(on behalf of Ms. Fatima Bhutto and Mr. Zulfiqar Ali Bhutto)

Amicus Curiae : Mr. Makhdoom Ali Khan, Sr. ASC.
Assisted by Mr. Saad Mumtaz Hashmi, ASC.
Khawaja Haris Ahmed, Sr. ASC.
Assisted by Dr. Yaser Ahmed, ASC.
Mr. Khalid Javed Khan, ASC.
Mr. Salahuddin Ahmed, ASC.
Mr. Assadullah Khan Chamkani, ASC.

For Complainant : Sahibzada Ahmed Raza Khan Kasuri.

For SCBA : Syed Ali Imran, ASC.

On behalf of Geo News : Miss Marium Nawaz, Reporter.

Date of Hearing : 08.01.2024.

ORDER

The learned Mr. Raza Rabbani states that he represents Ms. Sanam Bhutto, Ms. Bakhtawar Bhutto Zardari and Ms. Aseefa Bhutto Zardari respectively, the daughter and maternal granddaughters of the late Mr. Bhutto. Mr. Zahid. F. Ebrahim was appointed as amicus but states that he had already been approached by Ms. Fatima Bhutto and Mr. Zulfiqar Ali Bhutto, the paternal grandchildren of the late Mr. Bhutto. We enquired from the learned counsel and others present whether anyone has any objection to Mr. Zahid F. Ebrahim being counsel instead of amicus and none object. Learned Khawaja Haris Ahmed was appointed as amicus but he has disclosed that his father was counsel in a contempt case of Masood Mahmood, who was co-accused/approver in the case, therefore, his name may be withdrawn as amicus. Order accordingly. Learned Mr. Salahuddin Ahmed was appointed as amicus and discloses that he is married to the granddaughter of the murdered Nawab Ahmed Khan, therefore, if anyone objects to him being amicus he will withdraw. However, none present object to learned Mr. Salahuddin Ahmed appearing as amicus.

2. We commenced by hearing learned amicus Mr. Makhdoom Ali Khan. He has also filed material contained in two voluminous bound sets.

3. If any amicus or counsel wants a copy of the report of Mr. Justice Shafi ur Rehman or of the recording provided by Geo office to provide the same.

4. In view of the forthcoming elections and as important matters are coming before this Court, and as this Court wants to hear this Reference in detail, it be fixed for hearing in the third week of February 2024, which will also enable us to examine the material filed before us.

Qazi Faez Isa, CJ.

Sardar Tariq Masood, J.

Syed Mansoor Ali Shah J.

Yahya Afridi, J.

Amin-ud-Din Khan, J.

Jamal Khan Mandokhail, J.

Muhammad Ali Mazhar, J.

Syed Hasan Azhar Rizvi, J.

Musarrat Hilali, J.

Islamabad:
08.01.2024
(M. Tauseef)